

HOUSE BILL 2098

By Warner

AN ACT to amend Tennessee Code Annotated, Title 8 and
Title 50, relative to state employees.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 8, Chapter 50, is amended by adding
the following as a new part:

8-50-1401.

A state employee who has reasonable cause to suspect that improper
government conduct or a crime has occurred shall report the matter pursuant to this part.

8-50-1402.

As used in this part:

(1) "Adverse employment action" means constructive or actual discharge,
suspension from employment, demotion, transfer, decrease in compensation or
benefits, imposition of an unfavorable work schedule, or any other similar reprisal
or retaliatory action;

(2) "Crime" means a criminal act attempted or committed by misusing a
state employee's access, duty, position, or responsibility as a state employee,
which constitutes a felony offense under the laws of this state;

(3) "Good faith report" means a report made, without malice, by a
reporter, which the reporter has reasonable cause to believe is accurate and
true;

(4) "Improper government conduct" means any conduct or omission that
results in:

(A) A conflict of interest prohibited by state law;

(B) Fraud; or

(C) Theft of moneys or property belonging to or derived from federal, state, or local government sources, constituting a felony offense under the laws of this state;

(5) "Reasonable cause" means a sufficient reason, based on known facts, to assume something is true;

(6) "Reporter" means a state employee who witnesses or has evidence of improper governmental conduct or a crime and who makes a good faith report of the improper government conduct or crime to a supervisor or other appropriate authority;

(7) "State agency" means any agency, board, bureau, commission, committee, department, division, or office of this state;

(8) "State employee" means a full-time, part-time, seasonal, or temporary employee of any state agency; and

(9) "Supervisor" means a state employee with supervisory authority over one (1) or more state employees.

8-50-1403.

(a) A state employee who, in the regular course of the state employee's official duties, has reasonable cause to suspect that another state employee has engaged in improper governmental conduct or a crime shall promptly report the matter to a supervisor.

(b) Upon receipt of a reporter's good faith report, a supervisor shall promptly submit a report containing the information provided by the reporter to the attorney general and reporter pursuant to § 8-50-1404.

(c) The supervisor shall promptly submit to the attorney general and reporter any record, as allowed by law, in the supervisor's custody or control evidencing the improper governmental conduct or crime.

(d) It is an offense for a supervisor to intentionally fail to submit a report to the attorney general and reporter as required by subsection (b). A violation of this subsection (d) is a Class B misdemeanor.

(e) It is an offense for a supervisor to intentionally fail to submit a record to the attorney general and reporter as required by subsection (c). A violation of this subsection (e) is a Class B misdemeanor.

(f) Adverse employment action must not be taken by a supervisor against a reporter making a good faith report.

8-50-1404.

(a) The attorney general and reporter shall create a form for use by supervisors when reporting good faith reports of improper governmental conduct or a crime. The form must be made available to all state agencies.

(b) A supervisor who must submit a report as required by § 8-50-1403(b) shall prepare the required report using the form described in subsection (a).

(c) A reporter making a good faith report shall cooperate with any investigation or inquiry initiated in response to the filing of the good faith report.

8-50-1405.

Each state agency shall adopt a written policy on reporting improper government conduct and crime. The policy must include the submission of records evidencing the improper governmental conduct or crime. Each state agency shall notify and inform state employees of the obligations and protections set forth in this part.

8-50-1406.

The attorney general and reporter shall report to the chairs of the joint government operations committee on an annual basis regarding the number of reports received pursuant to this part and the disposition of each report.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.